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IN THE
Supreme Court of the United States

OCTOBER TERM, 1994

BRUCE BABBITT, Secretary of the United States
Department of the Interior, *et al.*,
Petitioners,

v.

SWEET HOME CHAPTER OF COMMUNITIES
FOR A GREAT OREGON, *et al.*,
Respondents.

On Writ of Certiorari to the
United States Court of Appeals
for the District of Columbia Circuit

BRIEF FOR RESPONDENTS

Of Counsel:

WILLIAM R. MURRAY
AMERICAN FOREST &
PAPER ASSOCIATION
1111 19th Street, N.W.
Suite 800
Washington, D.C. 20036

JOHN A. MACLEOD *
STEVEN P. QUARLES
CLIFTON S. ELGARTEN
THOMAS R. LUNDQUIST
CROWELL & MORING
1001 Pennsylvania Avenue, N.W.
Washington, D.C. 20004-2595
(202) 624-2500

Attorneys for Respondents

** Counsel of Record*

QUESTION PRESENTED

Section 9(a)(1) of the Endangered Species Act of 1973, 16 U.S.C. § 1538(a)(1), makes it unlawful for any person to "take" an endangered fish or wildlife species. The Act defines "take" to mean "to harass, harm, pursue, hunt, shoot, wound, kill, trap, capture, or collect, or to attempt to engage in any such conduct." *Id.* § 1532(19). By regulation, the U.S. Fish and Wildlife Service has defined "harm" in a way that focuses exclusively on the ultimate effect that any action has on a wildlife species; by its terms, it extends to ordinary land use activities ("habitat modifications"), like those engaged in by Respondents here, neither directed at wildlife nor directly injuring wildlife. 50 C.F.R. § 17.3. The question presented is:

Whether the Fish and Wildlife Service's regulatory definition of "harm" represents a permissible expansion of liability under Endangered Species Act § 9(a)(1)?

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BRIEF FOR RESPONDENTS

**STATUTORY AND REGULATORY
PROVISIONS INVOLVED**

The relevant provisions of the Endangered Species Act of 1973 as amended ("ESA" or "Act"), 16 U.S.C. §§ 1531-44, that are not in the Appendix to the Brief of Petitioners¹ ("Pet. Br.") are set forth in the Appendix to this brief.

¹ Petitioners, Secretary of the Interior Babbitt and Fish and Wildlife Service ("FWS") Director Beattie, are collectively referred to as "Petitioners" or "FWS." Respondents are collectively referred to as "Respondents" or "Sweet Home." The corporate Respondents (Erickson Busheling, Inc.; Ridgetree Logging Co.; Shotpouch Logging Co.) are privately held and have no parent or subsidiary companies. Respondents include all the parties iden-

STATEMENT

Congress did not intend the prohibition against "take" of protected wildlife, set forth in ESA § 9(a)(1), to encompass ordinary land use activities that are not directed at wildlife and do not directly injure protected wildlife.

The Statute. The ESA protects against two significant sources of species extinction: (1) the depletion of needed habitat, and (2) human predation. *Tennessee Valley Authority v. Hill*, 437 U.S. 153, 179 (1978) ("TVA"). The ESA targets the first source in §§ 5 and 7, and the second in § 9. 16 U.S.C. §§ 1534, 1536, and 1538.

ESA § 9(a)(1) prohibits commerce in or the taking of an endangered wildlife species.² *Id.* § 1538(a)(1). The provision specifically at issue here makes it "unlawful for any person subject to the jurisdiction of the United States to . . . take any such species". *Id.* § 1538(a)(1)(B). "Take" is defined in the Act. It means "to harass, harm, pursue, hunt, shoot, wound, kill, trap, capture, or collect, or to attempt to engage in any such conduct." *Id.* § 1532(19).

tified by Petitioners except Betty Orem, who has sold her property and no longer wishes to be a party.

² ESA § 11 sets civil and criminal penalties for violations of the Act. An individual who has "knowingly" taken a listed species can be imprisoned for up to one year and fined up to \$100,000 for each member taken. 16 U.S.C. § 1540(b); 18 U.S.C. §§ 3559, 3571. The lower courts have held that the "knowingly" standard of § 1540(b) requires only a general intent to perform an act, not a specific intent to violate the ESA. *E.g., United States v. Nguyen*, 916 F.2d 1016 (5th Cir. 1990). In addition, ESA § 11 authorizes governmental and citizen suits to enjoin violations. 16 U.S.C. § 1540(e)(6), (g)(1).

Although ESA § 9(a)(1) refers to *endangered* wildlife species, FWS has adopted a regulation extending the "take" prohibition to most *threatened* wildlife species. 50 C.F.R. § 17.31(a). ESA § 9(a)(1)(G) makes it unlawful for any person to "violate any [ESA] regulation." 16 U.S.C. § 1538(a)(1)(G).

The Regulation. FWS has elaborated upon the statutory definition by adopting a regulation that in turn defines "harm":

Harm in the definition of "take" in the Act means an act which actually kills or injures wildlife. Such act may include significant habitat modification or degradation where it actually kills or injures wildlife by significantly impairing essential behavioral patterns, including breeding, feeding or sheltering.

50 C.F.R. § 17.3. That regulatory definition sweeps within the "take" prohibition a host of activities that are not directed at wildlife and not ordinarily thought of as the taking of wildlife. Specifically, it includes "habitat modifications" that cause or contribute to some injury to a listed species³ generally, for example by withdrawing some beneficial habitat from the species and thus "impairing essential behavioral patterns, including breeding, feeding or sheltering." The agency definition achieves this result by relying on the ultimate *effect* of an action; the nature of the action itself is not important. Thus, the regulation does *not* require that the prohibited action be directed at or against wildlife. Nor does it require any direct injury to some identifiable creature.⁴

Application of the Regulation. As written, the regulation reaches the use of land in furtherance of ordinary

³ "Listed species" is the common collective reference for endangered and threatened species.

⁴ As Petitioners advised the court below, "'harm' exists where there is proof that habitat modification alters essential behavioral patterns which then indirectly will cause death or injury (such as reproductive failures) to the species. . . ." Brief for Federal Appellees 47 (Nov. 25, 1992). The necessary proof "may consist . . . of measurable declines in the population of the animal." *Id.* See Brennan and Swanson, *Wildlife Protection on the Public Lands*, Public Land Law 7-21 (Rocky Mt. Min. L. Found. Sp. Inst. 1992) (FWS officials advising of "FWS position that habitat modification alone, without direct evidence of physical harm, can constitute a forbidden taking of listed species").

agricultural, silvicultural, housing, and similar objectives. FWS relies on the regulation to warn landowners that it considers certain land uses harmful to certain listed species (as by interfering with breeding or foraging patterns), and that engaging in such activities will subject the actor to agency enforcement.⁵ As a practical matter, "persons whose extended conduct might be found a 'take,' and who thus are exposed to the criminal penalties . . . are under commanding pressure to comply" with FWS's view of "harm," either by forgoing such conduct or by applying for an incidental take permit.⁶ Pet. App. 93a.

The scope and uses of the regulation are illustrated by FWS's "owl guidelines." Those guidelines describe what FWS considers "harm" to the northern spotted owl, a threatened species that is widely dispersed across forested lands in the Northwest. The guidelines state that timberland owners will be "subject to investigation" for prosecution under ESA § 9 if they do not preserve (forgo timber harvesting on) 1,000 to 3,960 acres around each spotted owl nest site.⁷

⁵ These warnings put landowners on "notice," of course, and thus facilitate criminal enforcement for a "knowing" violation of the Act.

⁶ Under the 1982 ESA Amendments, FWS is authorized to permit actions that it would otherwise view as prohibited. 16 U.S.C. §§ 1536(b)(4), 1539(a). A person seeking an "incidental take permit" to use his or her land without fear of prosecution must agree to be bound by a "conservation plan" setting forth the permissible uses of that land. *Id.* § 1539(a).

⁷ J.A. 42-44. See Sweet Home's Complaint ¶ 24, J.A. 25. The owl guidelines and other examples of FWS's application of its "harm" definition are discussed in Gidari, *The Endangered Species Act: Impact of Section 9 On Private Landowners*, 24 *Envtl. L.* 419, 426-43 (1994); Ruhl, *Regional Habitat Conservation Planning Under The Endangered Species Act: Pushing The Legal And Practical Limits Of Species Protection*, 44 *Sw. L.J.* 1393, 1409-19 (1991). FWS continues to follow the standards in the owl guidelines. See 60 *Fed. Reg.* 9486, 9491, 9496 (Feb. 17, 1995).

The Proceedings Below. Respondents are directly affected by the agency's "harm" regulation. They brought this action under ESA § 11(g) and the Administrative Procedure Act ("APA") to challenge it. See J.A. 17-26. As the district court summarized (Pet. App. 76a):

Plaintiffs in this action are small landowners, small logging companies, and families allegedly dependent on the forest products industry in the Pacific Northwest and in the Southeast. In order to enforce the regulations at 50 C.F.R. § 17.3 and § 17.31(a) and to avoid "harm"-type takings of the northern spotted owl and other threatened wildlife species, the Fish and Wildlife Service ("FWS") has placed restrictions on timber harvesting. Plaintiffs claim that these restrictions have forced them to lay off employees, limited their income from trust lands, reduced the timber supply, and placed some of the plaintiffs in the position of being unable to support their families. They bring this action challenging the "harm" definition at 50 C.F.R. § 17.3 as contrary to the ESA.

The district court sustained the regulation. Pet. App. 77a-83a. The court of appeals reversed,⁸ holding the "harm" regulation invalid in its effort to "embrace habitat modifications." Pet. App. 24a. The court concluded that the agency's definition was inconsistent with the statutory (and ordinary) meaning of "take," with the overall structure of the Act, and with its legislative history. Pet. App. 3a-10a.

⁸ Upon initial consideration, the panel voted to affirm. Pet. App. 46a. Judge Williams agreed with Judge Sentelle that the agency's "harm" regulation was irreconcilable with the 1973 Act, but he believed the ESA Amendments of 1982 had implicitly ratified the agency's interpretation. Pet. App. 67a-72a. He thus voted with Judge Mikva for affirmance; Judge Sentelle dissented. On Sweet Home's petition for rehearing, Judge Williams reconsidered his earlier views on the effect of the 1982 Amendments, concluding that they had *not* altered the 1973 Act in any relevant respect. Pet. App. 10a-24a. He authored the 2-1 majority opinion.

Judge Sentelle concurred, emphasizing that the language and structure of the Act precluded the agency's interpretation, without resort to legislative history. He found himself unable to "cram the agency's huge regulatory definition" into the "tiny crack of ambiguity" created by including "harm" with the nine other terms in the statutory definition of "take." Pet. App. 26a.

Judge Mikva dissented. He found "the legislative history to be most ambiguous," Pet. App. 34a, and concluded that the deference owed the agency interpretation under *Chevron U.S.A., Inc. v. Natural Resources Defense Council, Inc.*, 467 U.S. 837, 842-45 (1984), required the regulation to be sustained. Pet. App. 40a-41a.

On August 12, 1994, the court of appeals denied Petitioners' request for rehearing *en banc*. Pet. App. 89a-99a. Judge Williams' opinion filed that day summarizes how the "harm" regulation exceeds statutory limits:

[T]he statute, fairly read in light of the "traditional tools of statutory interpretation," manifests a clear determination by Congress that the prohibitions of [ESA] § 9 should not reach habitat modifications as defined by the Department [of the Interior], where there is no direct action by the defendant against any member of the species. Extending the word "harm" to reach habitat modification as so conceived carries § 9's prohibition far beyond the reach effected by all the other terms used in the definition; it applies to every citizen duties the Act expressly imposed only on federal government agencies; and it ignores the plausible inferences from the Senate's deletion of the phrase "habitat modification" from the draft bill.

Pet. App. 95a-96a.

This Court granted certiorari on January 6, 1995.

SUMMARY OF ARGUMENT

The prohibition against "take" of listed wildlife set forth in ESA § 9, 16 U.S.C. § 1538, cannot fairly be read to bar ordinary uses of land. Yet FWS has seized on the elastic word "harm," one of ten verbs within the statutory definition of "take," to expand the reach of ESA § 9 in just that way. FWS defines "harm" to forbid any "habitat modification" if its ultimate effect is to injure a listed species, even by reducing the reproductive success of a species member. *See* note 4, *supra*. By looking exclusively to ultimate effect, and disregarding the character of the conduct sought to be prohibited, FWS's regulation reaches many normal activities that are not directed at wildlife and cause no concrete injury to listed wildlife. That effort is irreconcilable with the Act as written.

The words Congress used to describe what it sought to prohibit reveal adherence to the traditional concept of a wildlife "take." They reflect Congress' desire to stop all forms of human predation on protected species. As enacted by Congress, the "take" prohibition evokes purposeful efforts to injure or capture wildlife; the direct application of force to, or physical intrusions on, specific creatures; direct and concrete injury to identifiable animals; and actions which a specifically acting human does to a specific creature. Whatever elasticity "harm" may have in other contexts, its use as one of ten descriptors of wildlife "take" will not allow it to reach "habitat modifications" that unintentionally deprive listed wildlife of some environmental benefit. The expansion of ESA § 9 to reach and potentially criminalize ordinary actions of ordinary citizens cannot be hung on so "small a nail" (Pet. App. 96a) as the unelaborated and unhighlighted use of "harm," a word added to nine existing words in the reported definition of "take" by "technical amendment" on the Senate floor.

Petitioners are correct that Congress was concerned with the need to preserve vital habitat for endangered

species. The structure of the Act confirms, however, that Congress addressed that concern through other provisions. Those provisions, which impose special duties on the federal government, would be rendered meaningless or inconsequential if Petitioners' view of "harm" were accepted. The intent of the Congress that enacted ESA § 9 cannot be found in amendments that subsequent Congresses did not adopt or made to other provisions of the Act. Nor can Petitioners' policy arguments overcome the text and structure of the Act.

ARGUMENT

I. FWS'S EXPANSIVE DEFINITION OF "HARM" IS NOT CONSISTENT WITH THE LANGUAGE, STRUCTURE, OR HISTORY OF THE ACT

A. The Issue Presented

The agency's aggressive interpretation of "harm" (and therefore of "take" as used in the operative portions of the Act) broadly expands the prohibitions of ESA § 9, creating FWS authority over any number of private land uses. As Petitioners make clear, FWS's gloss on the word "harm" is important because it, and it alone, renders unlawful an extraordinarily broad class of seemingly lawful activities—private land use activities indirectly affecting listed wildlife, but in no respect directed at wildlife or directly injuring specific animals. These activities would otherwise be beyond the "take" prohibition and, indeed, beyond the regulatory scope of the Act. "Harm" is thus the "hook" upon which FWS hangs a pervasive constraint on the use of private land.

Under FWS's definition, effects on listed wildlife *alone* are sufficient to render a person's actions unlawful. This is clearly expressed in the regulation: "habitat modification . . . where it actually kills or injures wildlife by significantly impairing essential behavioral patterns, including breeding, feeding or sheltering."⁹

⁹ 50 C.F.R. § 17.3. As Petitioners explain, FWS does *not* limit "actual injury" to physical injury to an identifiable animal. See

The court below held that this regulatory definition carries "take" and "harm," as used in the Act, too far. When read in its statutory context, "take" necessarily involves action directed at wildlife. It thus cannot be stretched to cover the types of ordinary land use activities of concern to Respondents, such as cutting trees, clearing brush, or constructing or maintaining roads.

In so concluding, the court below recognized, and we concede, that the word "harm," wrenched from its context and considered abstractly, is a word of extraordinary elasticity, arguably capable of the meaning FWS attributes to it. *See* Pet. App. 3a-4a, Pet. Br. at 20-21. "Harm" can be used to refer to any sort of action that produces any sort of negative effect on a person or thing. It is sometimes even used to refer to actions or inactions that deprive some person or thing of some needed benefit (*e.g.*,

Pet. Br. at 6-7, 45; note 4, *supra*. The uncertainty in evaluating whether a given "habitat modification" will "significantly" impair the "essential behavioral patterns" of a particular species adds to the regulation's force as a land use constraint. Through general and specific warnings to private landowners that ordinary uses of their lands would subject them to "take" investigations, FWS effectively uses a threat of criminal sanctions to chill a great many land use activities that *might or might not* cause actual injury or death.

In addition, FWS has threatened state and local officials with prosecution for "harm" if they approve a permit and the permittee's actions "harm" listed wildlife. Rather than risk liability, these officials often apply FWS's view of "harm" as a limit on their permitting authority, thereby further constraining private land uses. *See* Gidari, 24 Env'tl. L. at 432-36; Anthony, *Interpretive Rules, Policy Statements, Guidances, Manuals, And The Like—Should Federal Agencies Use Them To Bind The Public?*, 41 Duke L.J. 1311, 1366-71 (1992); Thornton, *Takings under Endangered Species Act Section 9*, 4 Nat. Resources & Env't 7, 51 (Spring 1990) (local officials "listen when told they may go to jail for issuing a grading permit"). Thus, the "harm" regulation broadly constrains land uses. *See* Arnold, *Conserving Habitats and Building Habitats: The Emerging Impact of the Endangered Species Act on Land Use Development*, 10 Stan. Env't'l L. J. 1, 30-36 (1991).

a hospitable habitat), thereby “harming” that person or thing.

Yet the word is generally and most comfortably used in reference to purposeful efforts to injure.¹⁰ The command, “Don’t harm that child!”, for example, would not naturally be thought of as a directive to restrict the child’s television-watching or candy intake, even though either in excess would cause the child “harm.” In active voice, or in a prohibitory sense—as in ESA §§ 3(19) and 9(a)(1)—“harm” is commonly understood to convey a sense of purposeful effort and direct, concrete injury.

But the meaning of the ESA term “harm” need not and cannot be judged in the abstract. As in virtually every case of statutory construction, its meaning must be determined by its use in context.¹¹ *King v. St. Vincent’s Hosp.*, 502 U.S. 215, 221 (1991) (the “meaning of statutory language, . . . depends on context”). If Congress’ intent is discernible from the statutory language and its context, the statute’s structure, and principles of statutory con-

¹⁰ See J. Opdycke, *Mark My Words: A Guide to Modern Usage and Expression* 330 (1949) (“[H]urt connotes pain as a rule, as a hurt to a hand or a paw or a hoof, or to a name or a reputation or a trade. Like *harm*, it is almost as broad in connotation as *injury* itself. But *harm* has in it a little of the idea of specially focused hurt or injury, as if a personal injury has been anticipated and intended”) (emphasis added); G. Crabb, *Crabb’s English Synonymes* 449 (1917) (“*Harm* and *mischief* are as general in their application as *injury*, and comprehend what is physically as well as morally bad, but they are more particularly applicable to what is done intentionally by the person”) (emphasis added).

¹¹ This proposition is equally true in discerning the meaning of language generally. See *Webster’s Third New International Dictionary of the English Language—Unabridged* (1971) at 19a (“The best sense is the one that most aptly fits the context”); McArthur, *The Oxford Companion to the English Language* 33 (1971) (Although most common English words have multiple meanings, “when a native user of English encounters [a word] there is rarely any ambiguity, because the context is usually clear”).

struction, that is the end of the matter. *INS v. Cardoza-Fonseca*, 480 U.S. 421, 446-49 (1987). Where Congress' intent can be discerned, no deference is owed under *Chevron* to an inconsistent interpretation that the agency regards as more felicitous.¹²

It is only when Congress' intent is not fairly discernible from "the text and reasonable inferences from it," *Brown*, 115 S.Ct. at 556, that the Court must proceed to the second step of the *Chevron* analysis. The question at that point is whether the agency interpretation is "reasonable in light of the legislature's revealed design." *Nationsbank of North Carolina, N.A. v. Variable Annuity Life Ins. Co.*, — U.S. —, 115 S.Ct. 810, 813-14 (1995).

Here, Congress' intent is discernible and precludes the "harm" regulation under the first *Chevron* inquiry. But even if it were not, Petitioners' reading is fundamentally inconsistent with Congress' revealed design, and thus unreasonable under *Chevron*'s second step.

The analysis below follows a series of widening concentric circles, proceeding (1) from the words used with "harm" in the statutory definition; (2) to the defined term "take" itself; (3) to the way "take" is used in the Act generally and in similar legislation; (4) to the structure of the Act as a whole; (5) to the other, nontextual principles of construction which provide guidance in construing statutes; and, finally, (6) to the legislative process and legislative history.

¹² Contrary to Petitioners' suggestion (at 30), the agency's interpretation receives no judicial deference during the first step of *Chevron*. E.g., *Brown v. Gardner*, — U.S. —, 115 S.Ct. 552, 557 (1994); *Demarest v. Manspeaker*, 498 U.S. 184, 190-91 (1991); *Chevron*, 467 U.S. at 843 n.9.

**B. The Agency's Attempt to Define "Harm" and
"Take" to Encompass Habitat Modification Actions
Affecting Wildlife, But Not Directed at Wildlife,
Is Inconsistent With the Statutory Text**

The ESA makes it "unlawful for any person . . . to . . . take" endangered wildlife. 16 U.S.C. § 1538(a) (1)(B). "Take" is defined in the Act, and the word "harm" appears within the statutory definition: "'take' means to harass, harm, pursue, hunt, shoot, wound, kill, trap, capture, or collect, or to attempt to engage in any such conduct." *Id.* § 1532(19). We focus first upon this statutory definition and the inferences to be drawn from the way "harm" is used within it.

1. "Harm"

a. Because "harm" is an indefinite word in a list containing words that are more definite, two established canons of construction are helpful. The first is the maxim "*noscitur a sociis*, that a word is known by the company it keeps." *Jarecki v. G.D. Searle & Co.*, 367 U.S. 303, 307 (1961). That principle is "often wisely applied where a word is capable of many meanings in order to avoid the giving of unintended breadth to the Acts of Congress." *Id.* This Court has frequently applied that principle (or something closely akin to it) in interpreting statutes because it provides one of the surest means of discerning the sense in which a statutory term has been used.¹³ A second, related canon is "*ejusdem generis*—that a general statutory term should be understood in light of the specific terms that surround it"—so that the general word is understood to include only "categories similar in type to those specifically enumerated."¹⁴

¹³ *E.g.*, *Gustafson v. Alloyd Co.*, — U.S. —, 115 S.Ct. 1061, 1069-70 (1995); *Brown*, 115 S.Ct. at 555; *Beecham v. United States*, — U.S. —, 114 S.Ct. 1669, 1671 (1994); *Dole v. United Steelworkers of America*, 494 U.S. 26, 36 (1990); *Massachusetts v. Morash*, 490 U.S. 107, 114-15 (1989).

¹⁴ *Hughey v. United States*, 495 U.S. 411, 419 (1990); see *Holder v. Hall*, — U.S. —, 114 S.Ct. 2581, 2604 (1994) (con-

It is not difficult to identify the common threads that run through the nine verbs accompanying the word "harm" in the statutory definition of "take." Each of these terms—"to harass, . . . pursue, hunt, shoot, wound, kill, trap, capture, or collect" wildlife—involves action directed at the wildlife object, rather than merely affecting that object.¹⁵ They are all active words, suggesting purposeful conduct directed at some living thing. All "involve a substantially direct application of force, which the Service's" definition lacks altogether. Pet. App. 5a-6a. And all describe actions concretely affecting individual members of a species; they do not suggest actions more tenuously affecting the vitality of the species as a whole (*e.g.*, effects on the reproductive success rate). See note 4, *supra*.

In sum, each of the nine words accompanying "harm" is fully consistent with a comprehensive prohibition on the taking or attempted taking of wildlife, as taking is commonly used (*see* pages 19-22, *infra*). Looked at individually, and as a whole, those words reflect an effort to ban hunting and other forms of predation directed at listed

curing opinion); *Breining v. Sheet Metal Workers Int'l Ass'n Local 6*, 493 U.S. 67, 91-92 (1989). Petitioners also invoke *eiusdem generis*, agreeing that "harm" should be regarded as a general term whose meaning is guided by the common elements of the words that follow. Pet. Br. at 23. The problem for Petitioners, however, is that *eiusdem generis* undermines their broad, effect-driven definition, because the other words all imply efforts to cause hurt or injury to specific animals.

¹⁵ All of the terms, except perhaps "kill," can be fairly used *only* to describe action specifically directed at an object. When "kill" is used in active voice, or prohibitory sense ("Thou shall not kill"), it too connotes intentional and directed conduct. Here, the operative language of ESA § 9 is phrased in a present, active, and prohibitory sense. It would stretch "kill" beyond its ESA limits to use it to encompass everyday actions merely because they ultimately result in death. "Kill" is not synonymous with death. See *United States v. FMC Corp.*, 572 F.2d 902, 905 (2d Cir. 1978) (it "would offend reason and common sense" to find that wildlife "take" includes "deaths caused by automobiles").

wildlife. None implies the prohibition of an ordinary act, not directed against wildlife, that may generally deprive a species of some advantage (in the form of a preferred habitat) that it might otherwise enjoy.

The other terms used in the statutory "take" definition are thus far removed from the agency's "harm" regulation and the paradigm of habitat modification set forth in its second sentence. Unlike the verbs that are "harm's" neighbors in the statute, the agency's definition is not limited by the character of the conduct (whether the action is directed at wildlife), or even by the relationship between the actor and the consequences of the act (direct and immediate). Instead, it focuses exclusively on the ultimate effect of the act on listed wildlife. This confuses some remote effect on a species' population with a concrete effect on some member of that species (as is evoked by all the other terms within the definition). It also ignores the role of intervening acts in bringing about that generalized effect. It thus inflates the definition of "take" far beyond that which a specifically acting human *does to* an identifiable member of some species.

Applying the *noscitur a sociis* principle, Judge Sentelle expressed the point this way:

In the present statute, all the other terms among which "harm" finds itself keeping company relate to *an act which a specifically acting human does to a specific individual representative of a wildlife species*. In fact, they are the sorts of things an individual human commonly does when he intends to "take" an animal. Otherwise put, if I were intent on taking a rabbit, a squirrel, or a deer, as the term "take" is used in common English parlance, I would go forth with my dogs or my guns or my snares and proceed to "harass . . . pursue, hunt, shoot, wound, kill, trap, capture, or collect" one of the target species. 16 U.S.C. § 1532(19). If I succeeded in that endeavor, I would certainly have

“taken” the beast. If I failed, I would at least have “attempt[ed] to engage in . . . such conduct.” *Id.*

Pet. App. 70a (emphasis added).

Although Petitioners (at 21-23) appear to criticize the use of contextual canons, such as *noscitur a sociis*, it is plain that one must look *somewhere* to divine the sense in which an undebated, unelaborated and highly elastic term like “harm” is being used.¹⁶ The natural place to start is with its companion words in the statute. *Third Nat’l Bank of Nashville v. Impac Ltd.*, 432 U.S. 312, 322 and n.16 (1977) (“one hardly need rely on such Latin phrases as *ejusdem generis* and *noscitur a sociis* to reach this obvious conclusion” that “words grouped in a list should be given related meaning”). Because “harm” is “capable of many meanings,” the context-based canons are “wisely applied . . . to avoid the giving of unintended breadth” to the term. *Jarecki*, 367 U.S. at 307.

Petitioners themselves have agreed on another occasion. In an Interior Department legal opinion, published in 1981, they analyzed the ESA meaning of “harm.” Petitioners there concluded that under the *ejusdem generis* principle, “‘harm’ should be interpreted to include only those actions that are directed against, and likely to injure or kill, individual wildlife.”¹⁷

¹⁶ There is no specific legislative history on “harm.” The term was added as part of a package of 24 undebated “technical” floor amendments. See page 34, *infra*.

¹⁷ 46 Fed. Reg. 29,491 (June 2, 1981) (J.A. 58). Similarly, the Ninth Circuit recently applied the “familiar principle . . . that words grouped in a list should be given related meaning” to construe the term “harass” and other forms of “take” under the Marine Mammal Protection Act of 1972 (“MMPA”). *United States v. Hayashi*, 22 F.3d 859, 864 (9th Cir. 1994). Concluding that those terms all involved “direct intrusions,” the court refused to read “take” as extending far beyond the legislative focus on animals that “have been blown up, clubbed to death, run down by boats, [or] poisoned” to include the ordinary activities of private fishermen. *Id.* at 864 n.12.

Petitioners (at 27) argue that the court of appeals' description of all the other "take" terms as involving the "direct application of physical force" is undermined by the inclusion of "harass" and the example in the House Report of birdwatching as harassment (quoted at pages 34-35, *infra*). The argument is fundamentally misconceived. Petitioners are of course correct that "take" does *not* turn on "physical blows to the body" (Pet. Br. at 27), or any other actual physical touching. But the problems with FWS's definition and its focus on habitat modification lie elsewhere. It is the absence of activity directed at wildlife, of direct intrusion and concrete effect, that renders the definition untenable. "Harass" necessarily encompasses those elements.¹⁸ It is, like the other words within the definition, an act which a "specifically acting human does to a specific individual representative of a wildlife species." Pet. App. 70a.

The birdwatching-as-harassment example that Petitioners take from the 1973 House Report highlights what is lacking in the agency's "harm" definition. However benign the birdwatchers' motives,¹⁹ the "excessive birdwatch-

¹⁸ The first meaning of "harass" is "to lay waste" or "to worry and impede by repeated attacks." *Webster's Third New International Dictionary Of The English Language-Unabridged* 1031 (1971). All of the meanings of "harass" incorporate the elements of purposeful action and intrusion. *See id.* Similarly, the first meaning of "pursue", which FWS also claims (at 23) is "broader" than the other terms in the Act's definition, is "to follow with enmity" or to follow "determinedly in order to overtake, capture, kill or defeat." *Id.* at 1848. These words are thus entirely consistent with Congress' intent in ESA § 3(19) to reach all forms of "take" or "attempts to take" listed wildlife, as "take" is commonly understood. *See* pages 18-22, *infra*.

¹⁹ Petitioners suggest the image of a lone figure quietly observing birds from afar. But birdwatching often is not so benign. *See, e.g., Using Bird Tapes*, BIRDING, June 1992, at 168 ("sheer numbers of birdwatchers" cause certain birds to "face serious disruption"); *id.* at 168-73 (discussing common practice of using tapes to bring birds into view, a practice that pulls them from

ing" example assuredly involves physically intrusive action directed at wildlife. The conduct could not fairly be described as "harassment" without (1) the element of action directed at the object, and (2) the element of direct physical intrusion on particular birds. The "harm" regulation goes well beyond these limiting principles in prohibiting ordinary land uses (and other actions) merely on the basis of their ultimate effect on the species.

b. As Judge Sentelle pointed out below, the term "harm," as construed by FWS to focus solely on the ultimate *effect* on the species, makes superfluous all the other words in the statutory "take" definition. Pet. App. 25a and 71a-72a; see *NLRB v. Health Care & Retirement Corp.*, — U.S. —, 114 S.Ct. 1778, 1783 (1994) (rejecting interpretation which "renders portions of the statutory definition . . . meaningless"). Limited as the court of appeals suggested, however, the term fills a statutory gap designed to encompass the purposeful infliction of injury by means other than (for example) shooting or wounding.²⁰

their nests and normal activities and severely agitates territorial birds); *Yellow Rails, Birding Ethics, and the Law*, BIRDING, Dec. 1989, at 305 (describing 70 birdwatchers "tromp[ing] through a fragile marsh . . . to surround the Yellow Rail, close in on it, and catch it by hand"); *id.* at 306 (letter from FWS agent describing how people wanting to see a Whooping Crane "were pulling up in vehicles and flashing their headlights on the bird as it roosted," causing it to "repeatedly flush from the roost").

²⁰ Petitioners' argument to avoid surplusage (Pet. Br. 23) is difficult to comprehend. It seems to be that by defining "harm" to encompass the other words in the definition *and* any other ways to inflict injury, surplusage is somehow eliminated. *Id.* But the language of the Act does not hint at any such intended breadth. For example, the Act does not make it unlawful "to harass, shoot, wound, kill, pursue, capture or harm in any (other) way." "Harm" is merely one of the several words in the list, indistinct from the others as to dignity or emphasis. See *Gustafson*, 115 S.Ct. at 1069 (narrowly construing "communication," which "is but one word in a list").

c. The ESA's "take" definition also encompasses the "attempt to engage in any such conduct." The reference to "attempt" confirms that purposeful activity is what Congress had in mind.²¹ It is impossible to apply the concept of "attempt" to the notion of "harm" sponsored by Petitioners. That is, it is linguistically comfortable to speak of an attempt to harass, attempt to kill, attempt to hunt, attempt to pursue, attempt to shoot, attempt to wound, attempt to trap, attempt to capture, attempt to collect, or indeed, attempt to harm—but only if "harm" refers to some purposeful effort to injure wildlife.

2. "Take"

a. Petitioners (at 27-28) rely heavily on the statements from the Senate and House Reports to the effect that "'Take' is defined . . . in the broadest possible manner to include every conceivable way in which a person can 'take' or attempt to 'take' any fish or wildlife."²² S. Rep. No. 307, 93d Cong., 1st Sess. 7 (1973), *reprinted in* 1973 U.S.C.C.A.N. 2995. Petitioners' reliance on such statements highlights a fundamental point. While much attention has focused on the meaning of "harm," the *operative* statutory term is "take." It is the "take" of listed wildlife, as defined in the ESA, that § 9 forbids.

Congress is, of course, free to give any word it uses a wholly arbitrary meaning. But the presumption must be that Congress was using the word in at least one of its ordinary senses, and the term should be construed in a

²¹ An "attempt to harass or harm" wildlife under the ESA means that the activity's "purposes" are directed at wildlife. *Sierra Club v. Froehlke*, 534 F.2d 1289, 1302, 1304 (8th Cir. 1976).

²² This circular formulation is ineffectual to support the point Petitioners hope to make. At the time this statement was made, "harm" was not included in the "take" definition. See pages 34-35, *infra*.

way that is faithful to that core meaning.²³ In other words, it is one thing to give "take" its broadest possible meaning; it is quite another thing to give it an *impossible* one—a meaning that cannot be reconciled with conventional usage.

"Take" has an established meaning, as does the familiar concept of a "wildlife take." The dictionary definitions consistently convey the sense of purpose, the effort to exercise dominion over some creature, and the concrete effect of that creature.²⁴ Judge Sentelle aptly explained how Petitioners' approach is inconsistent with the established meaning of "take":

I see no reasonable way that the term "take" can be defined to include "significant habitat modification or degradation" as it is defined in 50 C.F.R. § 17.3. I have in my time seen a great many farm-

²³ *E.g.*, *Hayashi*, 22 F.3d at 864 (construing "harass" to "comport[]" with a common understanding of the term 'take,' of which 'harass' is simply one form").

²⁴ "Take" means:

1. to get into one's hands, possession, control, etc., by force or artifice . . .
2. to seize or capture . . .
3. to catch or get (fish, game, etc.), esp. by killing . . .
4. to hold, grasp, or grip . . .
5. to get into one's hold or possession by voluntary action.

The Random House Dictionary of the English Language-The Unabridged Edition 1448 (1971).

- I 1. To touch . . .
- II. To seize, grasp, capture, catch, and related senses.
2. To lay hold upon, get into one's hands by force or artifice . . .
- b. To catch, capture (a wild beast, bird, fish, etc.); also of an animal, to seize or catch (prey).

Compact Edition of the Oxford English Dictionary 3223 (1971).

- 1: to get into one's hands or into one's possession, power, or control by force or stratagem, as a: to seize or capture physically . . .
- b (1): to get possession of (as fish or game) by killing or capturing . . . sometimes used to include acts in attempt to kill or capture . . .
- (2): to seize as prey.

Webster's Third New International Dictionary of the English Language-Unabridged 2329-30 (1971).

ers modifying habitat. They modify by plowing, by tilling, by clearing, and in a thousand other ways. At no point when I have seen a farmer so engaged has it occurred to me that he is taking game. Nor do I think it would occur to anyone else that he was taking wildlife. He may be doing something harmful to wildlife, but he is not "taking" it.

Pet. App. 69a.

b. FWS's "harm" definition is also inconsistent with ESA § 9 generally, with the way "take" is used throughout the 1973 ESA, and with the use of wildlife "take" in similar statutes.

First, all of the prohibited acts in ESA § 9(a)(1) (*e.g.*, "import any such species," "take any such species," "possess, sell, deliver, carry, transport, or ship" any such species) refer to conduct that a specifically acting person engages in with respect to specific wildlife. 16 U.S.C. § 1538(a)(1). The focus of the provision is on the *purposeful* abuse and transportation of *individual specimens* of listed wildlife.

Second, "take" is used frequently in the Act, but not in a manner broad enough to house the meaning Petitioners attempt to give it in their "harm" definition. For example, ESA § 10(e) (addressing subsistence takings by Alaska Natives) refers to "byproducts of species *taken* pursuant to this section." 16 U.S.C. § 1539(e). ESA § 3(3) specifies "regulated *taking*" as a conservation measure that may be employed to relieve population pressures. *Id.* § 1532(3). ESA § 9(a)(1)(D) outlaws certain commercial transactions involving "species *taken* in violation" of the Act. *Id.* § 1538(a)(1)(D). And ESA § 11(e) provides for the forfeiture of instrumentalities used in a taking—the "guns, traps, nets, and other equipment, vessels, vehicles, aircraft, and other means of transportation used to aid the *taking*, possessing, selling." *Id.* § 1540(e)(4)(B). Substituting FWS's "harm"

definition for "take" in each of those statutory provisions would make the provisions nonsensical.

Finally, wildlife "take" has long been used in this sense of purposeful action against wildlife. See dictionary definitions in note 24, *supra*. The Migratory Bird Treaty Act ("MBTA"), as amended through 1989, makes it "unlawful at any time, *by any means or in any manner*, to pursue, hunt, take, capture, kill, attempt to take . . . any migratory bird [or] any part, nest or egg of any such bird." 16 U.S.C. § 703 (emphasis added). Even with the highlighted language, "take" under the MBTA is interpreted to mean "physical conduct of the sort engaged in by hunters and poachers." *Seattle Audubon Soc'y v. Evans*, 952 F.2d 297, 302 (9th Cir. 1991). Notwithstanding the MBTA's broad language, "take" simply does not reach ordinary land uses: "habitat destruction, leading indirectly to bird deaths . . . does not 'take' them within the meaning of the MBTA."²⁵

Under the MBTA, therefore, "take" is understood to involve actions directed at wildlife.²⁶ It does not reach "deaths caused by automobiles" and other everyday activities. *FMC Corp.*, 572 F.2d at 905. Similarly, "take"

²⁵ 952 F.2d at 303. The *Evans* opinion attempts to contrast the MBTA with the ESA, stating in *dicta* that "[h]abitat destruction causes 'harm' to the owls under the ESA." *Id.* To the extent the *Evans dicta* drew upon FWS's regulatory definition of "harm," the opinion is correct. But as a statutory matter, the contrast is not persuasive. Since the MBTA contains a *statutory* directive that "take" be construed as broadly as possible, "take" under the MBTA is no less expansive than it is under the ESA.

²⁶ As Petitioners point out (at 26 n.12), "take" has been found under the MBTA when protected birds were killed by toxic pesticides. See *FMC Corp.*, 572 F.2d 902. The manufacture and use of pesticides, however, are actions directed at killing animals. Like trapping or fishing, they may have the unintended effect of incidentally "taking" a listed species. But this would hardly extend the concept of "take" to ordinary activities not in the nature of killing, capturing, *etc.*

under the MMPA “must entail a . . . direct intrusion” against an animal. *Hayashi*, 22 F.3d at 864 (fisherman’s firing a rifle near, not at, a protected porpoise was not a “take”).

C. The Structure of the Act Further Undermines FWS’s “Harm” Regulation

1. The basic structure of the 1973 ESA belies Petitioners’ theory of “harm.” It is difficult to believe that Congress extended the reach of the ESA to ordinary land uses by adding the word “harm,” without elaboration, to nine other verbs, in the course of defining a “take” prohibition that, on its face and in context, seemed to prohibit predatory actions directed at listed wildlife.

If Congress had intended to reach land use under ESA § 9, it would have addressed the matter forthrightly. If Congress had meant “harm” to have such significance, it would have made the *operative* term in the statute “harm” instead of “take”—or found some other way to highlight ESA § 9’s intended breadth. *See, e.g.*, note 20, *supra*. Instead, Congress cast the section more narrowly, as a prohibition on “take,” and quietly placed the word “harm” in a list alongside nine other terms in the definitional section.

2. Congress was well aware that habitat destruction was the greatest threat to species extinction. *See TVA*, 437 U.S. at 179. The absence of any reference to habitat modification in ESA § 9 is therefore all the more significant, because it underscores the choice that Congress made to address that threat through other provisions of the Act.²⁷ The statutory structure shows that Congress

²⁷ FWS resists that choice, emphasizing (at 4, 18, 24) the ESA § 2(b) statement that the “purposes of this chapter are to provide a means whereby the ecosystems upon which endangered and threatened species depend may be conserved, [and] to provide a program for the conservation of such” species. 16 U.S.C. § 1531(b). This is, of course, true, but it proves nothing. The

perceived habitat destruction and human predation to be separate threats which the ESA would address in different ways.²⁸

3. As Petitioners acknowledge (at 8-9, 24), the 1973 ESA explicitly addressed the habitat destruction problem in §§ 5 and 7.²⁹ Each is directed to and imposes specific duties on the federal sector. Under ESA § 5, FWS “shall establish and implement a program to conserve” listed wildlife and “shall” do so by using its “land acquisition” authority. 16 U.S.C. § 1534(b). And under ESA § 7, every federal agency “shall” carry out programs for the conservation of listed species. *Id.* § 1536(a)(1). In addition, every federal agency:

shall . . . insure that any action authorized, funded or carried out by such agency . . . is not likely to jeopardize the continued existence of any [listed] species *or result in the destruction or adverse modification of habitat of such species which is determined by the Secretary . . . to be critical.*

very next provision and ESA § 7(a)(1) assign the duty to conserve to *federal agencies*. *Id.* §§ 1531(c)(1), 1536(a)(1); see *TVA*, 437 U.S. at 180. As Petitioners said in their *amicus* brief to the Ninth Circuit in *Palila v. Hawaii Dep't of Land and Natural Resources*, 852 F.2d 1106 (9th Cir. 1988), “[r]eliance on this broad statement of purpose [in § 1531(b)] cannot overcome . . . the limitations of the specific language Congress has chosen in Section 9 of the Act. . . . The responsibility to conserve, as defined in the Act, is specifically directed to federal agencies and activities, and not to the other persons and entities that are subject to the civil and criminal penalties of the Act.” Dist. Ct. Docket Entry 8, Ex. 5 at 20.

²⁸ By expressly addressing habitat modification in ESA § 7 but not in ESA § 9, Congress must be presumed to have acted “purposely in the . . . exclusion,” *i.e.*, as not intending to reach habitat modification under ESA § 9. *Keene Corp. v. United States*, — U.S. —, 113 S. Ct. 2035, 2040 (1993).

²⁹ See *TVA*, 437 U.S. at 179 and n.24 (“[v]irtually every bill introduced in Congress during the 1973 session responded to this [habitat destruction] concern by incorporating language similar, if not identical, to that found in the present § 7 of the Act”).

Id. § 1536(a)(2) (emphasis added). This extends the federal duty to every proposed project on private or state lands that involves federal funding or requires a federal permit.

4. ESA § 9, in contrast, directly applies to private and other non-federal landowners as well as the federal sector. By terms, it imposes *no* habitat conservation duty. It simply tells citizens that they cannot “take” listed species. *Id.* § 1538(a)(1)(B). “Thus,” the court below found, “on a specific segment of society, the federal government, the Act imposes very broad burdens, including the avoidance of adverse habitat modifications; on a broad segment, every person, it imposes relatively narrow ones.” Pet. App. 7a-8a.

5. By its application to ordinary land uses (*i.e.*, habitat modifications), FWS’s “harm” regulation turns this statutory scheme on its head, making the federal duties under ESA §§ 5 and 7 redundant and meaningless. There is little incentive for FWS to buy needed habitat (or conservation easements) from private landowners, in order to protect such habitat, if ESA § 9 is read to bar the destruction of any habitat that “harms” listed species.³⁰ The result, of course, is to bleed ESA § 5 of all meaning.³¹

³⁰ ESA § 5 provided funds to acquire critical habitat because landowners “are understandably unwilling to [provide habitat benefits for listed species] at excessive costs to themselves.” 119 Cong. Rec. 30,162 (Sept. 18, 1973) (remarks of House floor manager Sullivan). Thus, contrary to Petitioners’ surmise (at 21) that there is “no reason why Congress would have” excluded “destruction of habitat” from “take,” the legislative history confirms that it did so to respect the prerogatives of private property owners. A similar manifestation of Congress’ intent to reach the non-federal sector through incentives, rather than compulsion, is embodied in ESA § 6, which encourages (but does not coerce) States to assist in achieving ESA objectives by providing “financial assistance to any State” which enters into a “cooperative agreement.” 16 U.S.C. § 1535(c) and (d).

³¹ *Amici Cairns, et al.*, point out that the government spent only \$253 million between 1967 and 1993 to acquire land for listed

Moreover, if ESA § 9 already prohibits *anyone* from modifying *any* habitat to the detriment of even *one member* of a listed wildlife species, then ESA § 7(a)(2)'s specific prohibition on "adverse modifications of habitat" (as applied to federal lands and federally-authorized actions) becomes surplusage.³² Similarly, if *everyone* has a duty under ESA § 9 to avoid inadvertently injuring even *one member* of a listed species, there is nothing left of the separate federal duty under ESA § 7(a)(2) to avoid actions that "jeopardize the continued existence" of the species.

species protection. Cairns Br. at 18. That is a small fraction of the amount that Congress has authorized for appropriation from the Land and Water Conservation Fund, which is currently running \$900 million *annually*. 16 U.S.C. § 460l-5.

³² Despite Petitioners' contrary argument (at 41-42), there is no meaningful "operational difference" between FWS's view of "harm" and its view of the habitat "determined . . . to be critical" that is protected by ESA § 7(a)(2). Pet. App. 92a-93a; *compare* 50 C.F.R. §§ 17.94 and 402.02 (descriptions of critical habitat) with the "harm" regulation and the preamble description at 46 Fed. Reg. 54,750 (J.A. 72). FWS has defined the ESA § 7 concept of "destruction or adverse modification" of critical habitat as meaning an action that "diminishes the value of the critical habitat for both the survival and recovery of a listed species." 50 C.F.R. § 402.02. Quite evidently, such a diminution in the survival and recovery rate will occur when individuals die young or have decreased reproductive success. This replicates the "harm" standard of a "habitat modification" which "actually" lessens the "breeding" success of a listed species. *See id.* § 17.3; note 4, *supra*.

Petitioners protest at some length (at 41-44) that ESA §§ 7 and 9 are not rendered coextensive by the "harm" regulation. Their best argument that habitat to be protected under the "harm" regulation differs from critical habitat to be protected under § 7 seems to be that critical habitat can include areas "not currently inhabited by the species," whereas § 9 would not reach those areas. It trivializes the Act to suggest that Congress intended no difference between §§ 7 and 9 except the regulation of currently unoccupied areas.

Thus, under FWS's interpretation of "harm," ESA § 9 would subsume all the significant aspects of § 7 of the 1973 ESA. *See* Pet. App. 93a. If "'taking' comprehends habitat destruction, then it is at least doubtful whether Section 7 of the Act is even necessary." M. Bean, *The Evolution Of National Wildlife Law* 397 (GPO 1977); *see* Salzman, *Evolution and Application of Critical Habitat under the Endangered Species Act*, 14 Harv. Envtl. L. Rev. 311, 330 (1990) (FWS's interpretation of harm "effectively supplants jeopardy" as the ESA's operative standard).³³

FWS's interpretation does more than create minor "overlaps" (Pet. Br. at 17, 43) among the ESA's provisions. It either makes whole sections of the ESA entirely superfluous, or relegates them to a minor role in relation to the comprehensive duty to avoid "harm" conceived by FWS. The Court is rightly "hesitant to adopt an interpretation of a congressional enactment" having such effects. *Mackey v. Lanier Collection Agency & Serv.*, 486 U.S. 825, 837 (1988).

D. Established Precedents and Principles of Construction Suggest Skepticism of FWS's Interpretation

Other well-established principles of construction and precedents of the Court—based in policy, common sense, or the legal background against which Congress is presumed to legislate—are also appropriate guides for interpreting statutes and determining whether deference is ap-

³³ ESA § 7 cannot be relegated to such a subsidiary role. Even in 1982, the chairman of the House subcommittee with ESA jurisdiction described ESA § 7 as "the 'guts' of the act" and an environmental group spokesman agreed that ESA § 7(a)(2) "is, without question, the most important provision of the Act." *Endangered Species Act: Hearings Before the Subcomm. on Fisheries and Wildlife Conservation and the Environment of the Comm. On Merchant Marine and Fisheries*, 97th Cong., 2d Sess. 151 (statement of Rep. Breau), 164 (statement of Michael J. Bean) (1982) ("1982 House Hearings").

appropriate. Even were Petitioners' case stronger than it is on the face of the statute (and the legislative history, *see* subsection E below), the concerns reflected in those principles and precedents would warrant a healthy skepticism about the agency's interpretation of "harm."

First, FWS's interpretation broadly expands the agency's power and the ESA's reach based on the seemingly incidental use of a word in a statutory definition. Caution is warranted where an agency seizes on an elastic word to "bootstrap itself into an area in which it has no jurisdiction." *Adams Fruit Co. v. Barrett*, 494 U.S. 638, 650 (1990). The court of appeals put it this way:

The extension [claimed by FWS] vests the Department with authority to supervise the use of privately owned land in vast tracts of the United States, even to the point of forbidding modest clearing efforts conducted in the interest of fire protection in populated areas. . . . Congress clearly did not hang so massive an expansion of government power on so slight a nail as § 9's provision that no one should "harass, harm, pursue, hunt, shoot, wound, kill, trap, capture, or collect" an endangered species.

Pet. App. 96a.

Second, the Court should be wary of Petitioner's claim that Congress converted what are commonly regarded as innocent land uses into violations of law. Many activities are thought of as sufficiently questionable that a person engaging in them would not be surprised to find that he or she is subject to regulation. Taking game (in the ordinary sense) is of that character: it is common knowledge that hunting and fishing require a license. But a different set of activities is at issue here. One does not perceive that the cutting of trees on one's own land, or the tilling of one's field, or the harvesting of one's crops, is an activity subject to government regulation (let alone government prohibitions against taking game). There is nothing in the ESA (or its history) to suggest that Con-

gress intended to upset such settled expectations. This Court requires a clear statutory statement before finding that common activities like these have been transformed into crimes. *E.g.*, *Ratzlaf v. United States*, — U.S. —, 114 S.Ct. 655, 660-62 (1994).

Third, participants in heavily regulated industries (such as banking, insurance, or securities) might fairly anticipate that their actions could easily cross the line from the lawful to the unlawful—and be alert to where such lines are drawn. Moreover, *within* the confines of an elaborate regulatory framework, it is appropriate to defer to agency judgments. But the many forms of activity that are potentially rendered unlawful by Petitioners' construction of "harm" are not "heavily regulated." Nor can the agency's construction fairly be described as internal gap-filling. To the contrary, it is nothing less than a broad extension of the Act's prohibitory scope.

Fourth, the familiar rule of lenity mandates that criminal statutes be narrowly construed. Petitioners argue, of course, that they are entitled to massive doses of *Chevron* deference. But *Chevron* should have no application to a provision, such as this, that effectively criminalizes ordinary activities. *See* Pet. App. 97a; note 2, *supra*. Where a statutory term has both civil and criminal consequences, the rule of lenity requires the courts to "resolve . . . ambiguity in [the defendant's] favor." *United States v. Thompson/Center Arms Co.*, — U.S. —, 112 S.Ct. 2102, 2109-10 (1992) (plurality opinion); *see id.* 112 S.Ct. at 2111 (concurring opinion) ("rule of lenity prevents" the government's broad interpretation even in a civil setting); *Crandon v. United States*, 494 U.S. 152, 157-58 (1990) (also applying the rule of lenity in a "civil remedy" context).

In several recent cases, the rule of lenity has prevailed over an agency's contrary view of the statute. *See United States v. Granderson*, — U.S. —, 114 S.Ct. 1259, 1267 (1994); *Thompson/Center*, 112 S.Ct. at 2110 and n.9; *Crandon*, 494 U.S. at 177-78 (concurring opinion).

The rule of lenity should prevail because it reflects: (1) the separation of powers concern that Congress (not agencies or courts) should ordinarily define crimes; and (2) the due process concern that statutory terms with criminal consequences should be defined narrowly to provide fair warning of the conduct that will occasion those penalties.³⁴

The rule of lenity has particular force in a case like this one, where the agency has gratuitously offered its gloss to an ordinary statutory term. If deference is warranted at all when an agency interprets an everyday term like "harm," it is doubtless much less than is owed to a specialized interpretation clearly committed to the agency's expertise.

E. The Legislative History Confirms That Habitat Modification Actions Are Not Regulated Under ESA § 9

Because the language and the structure of the Act illuminate Congress' intent, there is no need to seek guidance in the legislative history. Nevertheless, that history confirms that Petitioners' interpretation is fundamentally inconsistent with Congress' intent. That confirmation comes from both the legislative process itself and the explanatory statements of the Senate and House leaders who managed their respective bills through that process.

1. Given Congress' conceded understanding that habitat destruction was a major cause of species extinction, the absence of *any* legislative history directly supporting the proposition that "take" encompasses habitat modification weighs heavily against FWS's interpretation.³⁵ The Court

³⁴ See *United States v. Kozminski*, 487 U.S. 931, 952 (1988); *United States v. Bass*, 404 U.S. 336, 347-49 (1971). See also Note, *Increased Scrutiny for the Administrative Crime*, 77 Cornell L. Rev. 612, 642-46 (1992).

³⁵ In this respect, the transcripts of the 1972 and 1973 ESA committee hearings are telling. If the statute had been perceived

ought not interpret "vague" language to "effect a major change" (expansion of "take" into the new arena of land use activities) without "at least some discussion in the legislative history." *Dewsnup v. Timm*, 502 U.S. 410, 419 (1992). The conspicuous silence suggests that "no reasonable legislator" actually perceived the breadth in ESA § 9 that Petitioners claim Congress intended.

2. The 1973 Congress had before it language very similar to that which FWS would now impose on the statute by regulation, but Congress decided *not* to include it in the bill as passed. A reference to "habitat modification" had been included in an earlier version of the ESA definition of "take."³⁶ Notwithstanding testimony emphasizing that the language was necessary to prevent listed wildlife from being "killed as a result of habitat modification," the Senate Committee on Commerce deleted that reference when it reported the bill to the full Senate.³⁷ See Pet. App. 9a-10a. The "deliberate deletion of habitat modification" from the "take" definition is flatly inconsistent with the notion that Congress

as reaching ordinary uses of land, witnesses from the forest products, farming, housing, and other affected sectors would have sought to testify and their testimony would have been welcomed by the congressional committees. Moreover, the vote itself belies the agency interpretation. The ESA passed unanimously in the Senate and with only 12 nay votes in the House. The very lack of controversy demonstrates that no one imagined a basis for the broadening gloss FWS has now added.

³⁶ Specifically, § 3(6) of S. 1983 had defined "take" to include the "destruction, modification, or curtailment of [a listed species'] habitat or range." *Endangered Species Act of 1973: Hearings on S. 1592 and S. 1983 Before the Subcomm. on Environment of the Senate Comm. on Commerce*, 93d Cong., 1st Sess. 27 (1973) ("1973 Senate Hearings").

³⁷ 1973 Senate Hearings at 80; see *id.* at 81-116. The reported version defined "take" as "harass, pursue, hunt, shoot, wound, kill, trap, capture, or collect, or to attempt to engage in any such conduct," much as the ESA does today. S. Rep. No. 307, 93d Cong., 1st Sess. 14 (1973).

intended "habitat modification" to be a method by which "take" could occur. Pet. App. 9a. "Congress does not intend *sub silentio* to enact statutory language that it has earlier discarded in favor of other language." *Cardoza-Fonseca*, 480 U.S. at 442-43 (collecting cases).

Petitioners argue (at 28-29) that the Senate Committee Report does not explain *why* "habitat modification" was deleted from the bill as reported.³⁸ Given Congress' emphasis on habitat protection in other sections of the Act (*see* pages 23-24, *supra*) and the explanation of the Senate floor manager (*see* page 34, *infra*), the only plausible reason is that the Committee did not want habitat modification to be a "take." It is not reasonable to infer that the language was deleted because the Committee somehow believed destruction of habitat was already a "take."³⁹

³⁸ Petitioners argue (at 28-29) that the language was deleted because it was overbroad, reaching *any* habitat modification "without regard to any effect on wildlife." If that had been the intent of the unenacted language, Congress certainly could have fixed the problem directly. For example, it could have prohibited "habitat modification causing injury." Instead, it deleted *all* references to such activity in ESA § 9.

³⁹ In fact, several legislators stated that they disapproved of the effort to define "take" to include destruction of habitat. Senator Stevens said, "I understand the comment about habitat. You [the environmental groups] have all commented on that with respect to wildlife. I really question it" 1973 Senate Hearings at 90. In the 1973 House Hearings, environmental groups urged that the House bill's definition of "take" be expanded to include "habitat modification." *See Endangered Species: Hearings on H.R. 37 and Other Bills Before the Subcomm. on Fisheries and Wildlife Conservation and the Environment of the House Comm. on Merchant Marine and Fisheries*, 93d Cong., 1st Sess. 251, 287, 299, 301, 307 (1973). The House declined to do so. *See id.* at 305. Even if the deletion of "habitat modification" were completely unexplained, the Court should give effect to such a legislative deletion, as it did in *John Hancock Mut. Life Ins. Co. v. Harris Trust & Sav. Bank*, — U.S. —, 114 S.Ct. 517, 526 (1993).

3. The statements of the Senate and House floor managers confirm that "take" was meant in its ordinary sense and did not address "habitat modification." In explaining the ESA provisions that their colleagues would be voting on, Senator Tunney and Representative Sullivan each described the Act as dealing separately with (1) the problem of predation by man, and (2) the distinct problem of habitat destruction.

Senator Tunney stated:

Many species have been inadvertently *exterminated by a negligent destruction of their habitat*. . . . Under this bill, we can take steps to make amends for our negligent encroachment. The Secretary would be empowered to use the *land acquisition authority* . . . to acquire land for the use of the endangered species programs. . . . *Through these land acquisition provisions, we will be able to conserve habitats necessary to protect fish and wildlife from further destruction.*

Although most endangered species are threatened primarily by the destruction of their natural habitats, a significant portion of these animals are subject to *predation by man* for commercial, sport, consumption, or other purposes. The provisions of S. 1983 would prohibit the commerce in or the importation, exportation, or *taking* of endangered species except where permitted by the Secretary.

119 Cong. Rec. 25,669 (July 24, 1973) (emphasis added).⁴⁰

Rep. Sullivan, whose Committee on Merchant Marine and Fisheries had declined to add "habitat modification"

⁴⁰ Even after "harm" was added to the bill's definition of "take," Senator Nelson made the same distinction between ESA § 9's assurance that "an animal or fish species will not be overtly 'taken'" and "another danger" separately posed by "habitat modification." 119 Cong. Rec. 25,691 (July 24, 1973); see also 119 Cong. Rec. 25,678 (July 24, 1973), 42,451 and 42,535 (Dec. 19, 1973) (remarks of Sens. Moss and Stevens).

to the ESA "take" definition, distinguished between: (1) the "destruction of . . . habitat", which the Act "will meet . . . by providing funds for acquisition of critical habitat", and (2) "[a]nother hazard," involving people who "capture or kill [listed species] for pleasure or profit," which the Act would address through the "take" prohibition:

For the most part, the principal threat to animals stems from the *destruction of their habitat*. The destruction may be intentional, as would be the case in clearing of fields and forests for development or resource extraction, or it may be unintentional, as in the case of the spread of pesticides beyond their target area. . . . *H.R. 37 will meet this problem by providing funds for acquisition of critical habitat. . . . It will also enable the Department of Agriculture to cooperate with willing landowners who desire to assist in the protection of endangered species, but who are understandably unwilling to do so at excessive cost to themselves.*

Another hazard to endangered species arises from those who would capture or kill them for pleasure or profit. There is no way that Congress can make it less pleasurable for a person to take an animal, but we can certainly make it less profitable for them to do so.

119 Cong. Rec. 30,162 (Sept. 18, 1973) (emphasis added). Thus, as the Act was described on the floor of the Senate and House, "take" was used in its ordinary sense to refer to predation by man; the preservation of habitat needed for survival of a species was addressed by other provisions.⁴¹

⁴¹ A contemporaneous law review article examined the legislative history and foreshadowed by 20 years the common sense conclusion of the court below:

Congress meant to apply taking restrictions to stop killing or otherwise harming the animal directly but reserved the acquisition power. . . as the sole remedy for protecting habi-

4. "Harm" was added to the ESA's "take" definition as one of 24 "technical" and "clarifying" amendments considered and adopted "en bloc," without debate, on the Senate floor.⁴² It would require a remarkably jaundiced view of the legislative process to believe that the most expansive and intrusive aspect of the ESA became law through stealth, rather than debate, slipped into the law by misdescribing the operative language as merely clarifying and technical. See *Granderson*, 114 S.Ct. at 1266-67 (narrowly construing an undebated floor amendment). It is far more realistic to read "harm" as the minor technical addition that it was described to be, rather than as a fountainhead for the regulation of ordinary land use activities under the ESA.

5. Petitioners read too much into two statements in Committee Reports:

"Take" is defined in section 3(12) in the broadest possible manner to include every conceivable way in which a person can "take" or attempt to "take" any fish or wildlife.

S. Rep. No. 307, *supra* at 7, reprinted in 1973 U.S.C.C.A.N. 2995.

"Take" is defined broadly. It includes harassment, whether intentional or not. This would allow, for

tats. . . . Based on this legislative history it is clear that "taking" should not apply to commercial cutting of timber on private lands.

Lachenmeier, *The Endangered Species Act of 1973: Preservation Or Pandemonium?*, 5 *Envtl. L.* 29, 39-41 (1974). See also Gidari, 24 *Envtl. L.* at 459 ("Congress cannot be said to have intended to circumscribe the development of private lands through the prohibitions of section 9 of the ESA").

⁴² 119 Cong. Rec. 25,682-83 (July 24, 1973). Petitioners highlight (at 29) that Senator Tunney described the 24 amendments as including language "omitted from early drafts which went unnoticed" and which "will help to achieve the purposes of the bill." But there is no indication this portion of his explanation referred to "harm," or that anyone would have understood it in that way.

example, the Secretary to regulate or prohibit the activities of birdwatchers where the effect of those activities might disturb the birds and make it difficult for them to hatch or raise their young.

H.R. Rep. No. 412, 93d Cong., 1st Sess. 11 (1973).

These are essentially circular statements that "take means take." See Pet. App. 71a. The focus on "take" is not helpful to Petitioners, because a "take" of wildlife is an action directed at wildlife. See pages 13-22, *supra*. Moreover, even a *statutory* clause (as opposed to this legislative history) directing that an Act be construed broadly "is not an invitation to apply [the Act] to new purposes that Congress never intended. Nor does the clause help us to determine what Congress had in mind." *Reves v. Ernst & Young*, — U.S. —, 113 S.Ct. 1163, 1172 (1993). Finally, "harm" was not in the ESA bills reported by these Committees (having been added later, on the Senate floor), and was therefore not the subject of these Committee Reports.

The birdwatching example, of course, fits squarely within the model that "take" focuses on action directed at, and directly intruding upon, specific wildlife. See pages 16-17, *supra*; *Gidari*, 24 Env'tl. L. at 459 ("it is clear from the birdwatching example that the harassment had to be directed against an individual member of the species and that the effects of the conduct had to be palpable"). The legislative history thus confirms what the text of ESA § 9 and the structure of the Act show—that Congress intended the "take" prohibition to halt all forms of predation against listed species, but never meant that prohibition to address the "separate" problem of habitat modification.

II. PETITIONERS' REMAINING ARGUMENTS DO NOT OVERCOME THE TEXT AND STRUCTURE OF THE ACT

A. The "Facial Challenge" Argument Is A Red Herring

For the first time, Petitioners present an argument that this is a "facial challenge" to the "harm" regulation. They assert that Sweet Home failed to meet its alleged burden (under *Reno v. Flores*, — U.S. —, 113 S.Ct. 1439, 1446 (1993)) of showing the absence of any circumstances under which the regulation would be valid.⁴³ The argument is a red herring.

1. In *Reno*, the Court was asked to address the validity of a regulation that had never "been applied in a particular instance." 113 S.Ct. at 1446. The challenge was based on the theory—unsupported by evidence or actual illustration—that the regulation *might* be applied in ways that would raise constitutional problems. See, e.g., *id.* at 1451 (absence of specific time period for hearing does not invalidate regulation because court cannot simply "assume, on . . . facial challenge, that an excessive delay will invariably ensue"). The Court had before it "no findings of fact, indeed no record, concerning the [agency's] interpretation of the regulation or the history of its enforcement." *Id.* at 1446. In those circumstances, the Court was unwilling to declare the regulation invalid on its face, based on the mere possibility

⁴³ Petitioners did not present the "facial challenge" theory to the district court, the original panel, or the rehearing or *en banc* panels, apparently accepting that this was at bottom a concrete, "as applied" challenge, albeit broad enough to undermine the entirety of the regulation. The Court should not consider an argument that was not presented to (or addressed by) the panel below. See *Taylor v. Freeland & Kronz*, — U.S. —, 112 S.Ct. 1644, 1649 (1992) (in order to "maintain the integrity of the process of certiorari", the Court does not ordinarily decide questions not raised in the lower courts).

that the regulation might, in some *future* circumstances, be improperly applied.

In contrast, where the challenge concerns a central feature of a regulation, the Court has found (and indeed the APA itself provides) that regulations may be reviewed to determine whether they exceed statutory authority.⁴⁴ *E.g.*, *Board of Governors of Fed. Reserve Sys. v. Dimension Financial Corp.*, 474 U.S. 361 (1986) (invalidating regulation as inconsistent with statutory authority even though the regulation encompassed not only its invalid application to "nonbank banks" but its valid application to true "banks").

This case bears no resemblance to the situation in *Reno*. This challenge does not depend on hypothetical, extreme, or potential aberrant applications of the "harm" regulation. To the contrary, it addresses directly the central features of the regulation and the "habitat modification" example around which it was written.⁴⁵

The regulation has been applied to Respondents (through the owl guidelines and otherwise) in ways that

⁴⁴ In the APA, Congress directed that a "reviewing court shall . . . hold unlawful and set aside agency action . . . found to be . . . (C) in excess of statutory jurisdiction, authority, or limitations, or short of statutory right." 5 U.S.C. § 706. Congress has thus provided for "facial" challenges to regulations in excess of statutory authority. In fact, in some cases it has effectively *mandated* them by providing that regulations can only be challenged within 60 days (or some other short time period) of their promulgation. *See, e.g.*, 30 U.S.C. § 1276(a)(1). This challenge was brought pursuant to the APA and the ESA § 11(g) provision on citizen suits. *See* Complaint ¶ 2 (J.A. 17).

⁴⁵ This is not a case where the regulation has yet to be applied. There is no dispute about its manner of application and scope. The essential premises of the "harm" regulation (with its focus exclusively on effect, and its express inclusion of habitat modification) go beyond the agency's statutory authority. Those essential premises, evident on the face of the regulation, have limited the ability of Respondents to use their lands; they must conform their conduct to the regulation.

have directly constrained Respondents' ability to harvest timber and engage in related activities; those applications prompted this challenge.⁴⁶ The clearly expressed threats of enforcement and the possibility of criminal penalties create a "commanding pressure to comply." Pet. App. 93a. For that reason, no question has been raised about Respondents' standing or the existence of a ripe controversy. For the same reason, Petitioners' newly found "facial challenge" argument is without merit.

In short, this is not a "facial challenge" in the sense of the unapplied and unknown regulation that was before the Court in *Reno*. The concrete application of *this* regulation to Respondents, and the history of its use, leave no room for argument that the regulations will be interpreted within the confines of the Act.

2. Even if this were to be considered a "facial challenge" in some sense, Respondents have squarely met the standard for demonstrating that the regulation is invalid.⁴⁷ The regulation was beyond the power of the

⁴⁶ See Complaint ¶¶ 4-14, 23-26 (J.A. 17-26); Pet. Br. at 11 (Respondents "are engaged in, or depend upon, timber harvesting" and "allege that they are affected by the 'harm' regulation because of its application to the northern spotted owl" and red-cockaded woodpecker); Pet. App. 76a (similar description by district court). FWS's "owl guidelines" effectively prohibit timber harvesting on up to 3,960 acres surrounding each spotted owl nest site. That restriction applies despite the absence of any evidence or allegation of injury to, or any intention to injure, a single spotted owl. See pages 4, 8-9, *supra*.

⁴⁷ Petitioners battle strawmen (at length) in suggesting that the court of appeals based its holding on "an extravagant reading and speculative applications." Pet. Br. at 49. Petitioners mischaracterize the narrow purposes for which the court cited its examples. Moreover, the aspects of the regulation cited by Petitioners as providing a narrower view of its scope address the quantum of injury that must be shown. *E.g.*, Pet. Br. at 46-49. The primary flaws in the agency definition do not involve that

agency to adopt because it prohibits conduct that, *under the statute*, is lawful. It does so by excluding from the definition the central characteristics needed to render such conduct *unlawful* under the Act. What this means, of course, is that the "harm" regulation is overbroad in *every* application. The elimination of the essential attributes of the type of conduct meant to be prohibited by ESA § 9—actions *directed at* wildlife, directly injuring wildlife—is what makes the agency's regulation *ultra vires*. See Pet. App. 95a. The model it establishes for *proper* enforcement (habitat modification, in the form of withdrawing some benefit from a species) is a paradigm of the type of action that cannot be a wildlife "take."⁴⁸ Such a regulation, being "in excess of statutory jurisdiction," should be held "unlawful and set aside." 5 U.S.C. § 706.

B. The 1978 and 1982 ESA Amendments Did Not Change The Meaning Of "Take" Or Ratify The 1981 "Harm" Regulation

Petitioners rely heavily on the legislative history of the ESA Amendments of 1978 ("1978 Amendments") and 1982 ("1982 Amendments"). See Pet. Br. at 31-40. The court below examined Petitioners' arguments at length, and found them insufficient to sustain the regulation. See Pet. App. 10a-24a. Judge Mikva, dissenting,

issue; they concern the regulation's indifference to the nature of the conduct sought to be prohibited.

⁴⁸ It is unavailing to suggest (*e.g.*, Pet. at 25-26) that "habitat modification" might be *purposely* used to kill listed wildlife (as in the example posed by Judge Silberman, in which the lake is drained in order to kill the fish). Such an action can certainly be prohibited or punished under the Act as it is written, because the example *assumes* that the action was directed at wildlife. But under the "harm" regulation, a court or agency applying the statute would never reach the question whether the action was directed at wildlife. It would be sufficient that the action *affected* the subject wildlife to the requisite degree.

acknowledged that the subsequent legislative history, standing alone, does not support the weight of the agency's interpretation. Pet. App. 39a.

This Court has repeatedly cautioned that "the interpretation given by one Congress (or a committee or Member thereof) to an earlier statute is of little assistance in discerning the meaning of that statute." *Central Bank of Denver, N.A. v. First Interstate Bank of Denver, N.A.*, — U.S. —, 114 S.Ct. 1439, 1452 (1994), quoting *Public Employees Retirement Sys. v. Betts*, 492 U.S. 158, 168 (1989). The Court's reluctance is grounded in constitutional principle: "Congress may legislate . . . only through passage of a bill which is approved by both Houses and signed by the President. See U.S. Const. art. I, § 7, cl. 2." *Central Bank*, 114 S.Ct. at 1453. The Court must be guided by the intentions of the Congress that actually passed the law. Later legislative-history "statements do not have 'the force of law, for the Constitution is quite explicit about the procedure that Congress must follow in legislating.'" *NLRB v. Health Care*, 114 S.Ct. at 1784-85, quoting *American Hospital Ass'n v. NLRB*, 499 U.S. 606, 616 (1991).

Even the reenactment of a statute is not enough to ratify a regulation, absent some specific endorsement of that regulation. Where "the law is plain, subsequent reenactment does not constitute an adoption of a previous administrative construction." *Brown*, 115 S.Ct. at 556-57, quoting *Demarest*, 498 U.S. at 190. In any event, neither the 1978 Amendments nor the 1982 Amendments reenacted the ESA § 3(19) definition of "take" or the § 9 language on "take." They were both directed to the revision of selected other sections. See 92 Stat. 3751 (1978); 96 Stat. 1411 (1982). Consequently, the sometimes stated principle that Congress ratifies a regulation when it reenacts a statute and voices its approval of the regulation does not apply. See *NLRB v. Health Care*, 114 S.Ct. at 1784; *Central Bank*, 114 S.Ct. at 1452

(because "Congress has not reenacted the language of § 10(b) . . . , we need not determine whether the other conditions for applying the reenactment doctrine are present"); *Betts*, 492 U.S. at 162; Pet. App. 23a-24a.

1. Petitioners argue (at 31-32) that the legislative history of the 1978 Amendments supports the validity of the "harm" regulation because Senator Garn proposed in that year, and later withdrew, an amendment that would have negated the "harm" regulation. In fact, Senator Garn proposed (and ultimately withdrew) a wholesale revision of the ESA, of which the provision cited by Petitioners was only one small part. *See* 124 Cong. Rec. 21,565 (July 19, 1978); Pet. App. 15a-16a. There was no debate on the withdrawn amendment, and there is no indication in the legislative history of any particularized concern about the proposed revision of ESA § 9 that it contained. Pet. App. 15a-16a. There can be many reasons for congressional action or inaction. *See* Pet. App. 21a. As the Court reiterated only recently, "congressional silence 'lacks persuasive significance.'" *Brown*, 115 S.Ct. at 557, quoting *Central Bank*, 114 S.Ct. at 1453.

2. Petitioners (at 34-40) focus most heavily on the 1982 Amendments. Those Amendments modified ESA § 10(a) to provide a process for authorizing a "taking [which] is incidental to, and not the purpose of, carrying out an otherwise lawful activity."⁴⁹ There is certainly nothing in the text of the 1982 Amendments that endorses or adopts the agency's view of "harm." The relief granted by the Amendments is consistent with either a broad or a more narrow view of "harm."

The 1982 Amendments provide a means by which prohibited activities that incidentally take protected wildlife

⁴⁹ 16 U.S.C. § 1539(a)(1)(B). The prerequisites for obtaining such an "incidental take permit" include: (1) preparing and agreeing to be bound by a "conservation plan", and (2) agreeing "to the maximum extent practicable, [to] minimize and mitigate the impacts of such taking." *See id.* § 1539(a)(2).

might nonetheless be permitted. Absent such a provision, a trapper who set traps to catch an unprotected species would be in violation of the law if a listed animal instead chanced within the snare. *See* Pet. App. 11a. The “incidental take permit” amendment gives the trapper a way out. It allows the activity to go forward, without the trapper having to fear prosecution, if the take of the *protected* species is truly incidental, will not severely harm the population, and if efforts are made to mitigate the effects of the action on protected species.

a. This understanding of “incidental take” as an action directed at wildlife, which inadvertently “takes” listed wildlife, follows from the only examples of “incidental take” that Congress enacted into law. The first statutory example concerns the “incidental taking of . . . sea turtles” while harvesting “shrimp.” 103 Stat. 1038 (1989), 16 U.S.C. § 1537 note (Supp. II 1990), at § 609(b)(2). In the second example, embodied in the 1994 MMPA amendments, Congress adopted provisions to “govern the incidental taking of marine mammals *in the course of commercial fishing operations. . .*” 108 Stat. 546, § 118(a) (1994) (emphasis added); *see also Pacific Northwest Generating Cooperative v. Brown*, 38 F.3d 1058, 1067-68 (9th Cir. 1994) (approving “‘incidental’ take” of listed salmon under the ESA while fishing for other salmon). It does no violence to the meaning of “take” to suggest that when one is out setting nets to “take” shrimp, and unintentionally captures or kills a listed sea turtle instead, one has “taken” the turtle along with the shrimp. Indeed, that would be an ordinary use of the word “take.”

b. There appears to be no contrary example in which Congress has adopted statutory provisions that equate “incidental take” with “habitat modification” activities. Petitioners focus instead (at 35-36) on an ambiguous excerpt from the legislative history of the 1982 Amendments, a discussion of the plan adopted to protect two listed butterflies. Nothing in that legislative history,

however, demonstrates that Congress understood "habitat modification" to be the source of the asserted "take." Indeed, the legislative history appears to suggest other sources. See H.R. Conf. Rep. No. 835, 97th Cong., 2d Sess. 32 (1982), *reprinted in* 1982 U.S.C.C.A.N. 2873; 128 Cong. Rec. 26,188 (Sept. 30, 1982) (remarks of Rep. Breaux).⁵⁰

What *is* clear, however, is that the Conference Report's discussion is centered on the types of remedial conservation activities that FWS might find acceptable in exercising its enlarged permitting power. While the Report does indicate that a "habitat conservation plan" could be the *remedy* for a "take," this "does not imply . . . that *takings* encompass habitat modification." Pet. App. 14a.

c. It is true that during the 1982 House Hearings, a House Subcommittee received some conflicting testimony about whether the ESA contemplated that "take" would reach activities not directed at harming wildlife.⁵¹ See Pet. Br. at 37. Additionally, a passage in the 1982 Senate Report compares plant protection with animal protection in a way that acknowledges the FWS view that "harm" includes habitat modifications. *See id.*

These snippets of legislative history at most demonstrate that some committee staffers (those who wrote the "plant" section of the Senate Report), and presumably some members of the respective Committees, were aware that FWS had adopted the "harm" regulation. But this resolves nothing, because Congress, as a legislative body,

⁵⁰ Another legislative history example, addressed by the court of appeals, belies Petitioners' theory. See Pet. App. 11a-13a.

⁵¹ Compare 1982 House Hearings at 233-34, 240, 342 with *id.* at 273, 290-94, 343, 425-28. Many witnesses recommended that the debate about the meaning of "harm" be resolved by adopting remedial provisions allowing incidental take, and FWS agreed. See *id.* at 327-333, 355, 357, 484, 622-27, 648. The "incidental take" provisions subsequently adopted were thus *remedial provisions successfully obtained* to provide relief from ESA § 9 *whatever its scope*. As such, they cannot be deemed an endorsement of the "harm" regulation.

did not actually build such an interpretation into the Amendments.⁵² This is not a case where "one or the other interpretation . . . is essential" to the amendatory legislation. *MCI Telecommunications Corp. v. AT&T*, — U.S. —, 114 S.Ct. 2223, 2233 (1994).

d. Even if FWS's broad interpretation of "harm" had been widely understood,⁵³ and some members, or perhaps a majority, of Congress had focused on mitigating the effects of that interpretation, the granting of relief by Congress in the 1982 Amendments could not be taken as a ratification or endorsement of the agency's prior *ultra vires* interpretation. The 1982 Congress (or some or all of its voting members) could have "supported the [Amendments'] permit system on a completely agnostic premise about [the interpretation of "harm"]": "There are some pretty wild interpretations out there, and they may stick; if they do, it would certainly be helpful to have a mechanism for softening their impact." Pet. App. 12a-13a.

Since the 1973 ESA did *not* include ordinary land uses within "take," the possibility that some members of the 1982 Congress acted on the opposite assumption in adopting the "incidental take" provisions would change nothing. See *Landgraf*, 114 S.Ct. at 1495; *West Virginia Univ. Hosps., Inc. v. Casey*, 499 U.S. 83, 101 (1991); Pet. App. 17a ("where Congress adopts amendments on the basis of misconception as to the meaning of a prior statute's related provisions, the later act does not turn the

⁵² The legislative history, of course, is not law. *E.g.*, *NLRB v. Health Care*, 114 S.Ct. at 1784-85; *Landgraf v. USI Film Products*, — U.S. —, 114 S.Ct. 1483, 1495-96 (1994); *Central Bank*, 114 S.Ct. at 1453.

⁵³ Given the shifting and elusive interpretations of "harm" by the agency itself (see Brief of *Amicus Curiae* Cargill, Inc.), it is not possible to say that Congress endorsed any particular agency theory. See also Brief of *Amicus Curiae* National Wildlife Federation, *et al.*, at 7 (the "harm" regulation was little understood because there had been no federal "actions to enforce the 'harm' regulation" in 1975-81).

misconception into law"). At bottom, the "opinion of this later Congress as to the meaning of a law enacted 10 years earlier does not control the issue"; rather, it "is the intent of Congress that originally enacted the provision" that controls. *Mackey*, 486 U.S. at 839-40.

3. There is other *statutory* language enacted in the 1978 and 1982 Amendments that further undercuts Petitioners' argument that the "harm" regulation was implicitly ratified by those Amendments. In 1978 and 1982, Congress adopted and reenacted important ESA provisions regarding critical habitat.

Congress specifically defined critical habitat and required FWS to designate such habitat for each listed species, generally when the listing decision is made.⁵⁴ Importantly, it required FWS to make the designations of critical habitat by regulation, utilizing the APA's notice and comment rulemaking procedures. 16 U.S.C. § 1533 (a)(3), (b)(4). Congress specifically directed FWS to take into "consideration the economic impact . . . of specifying any particular area as critical habitat," and allowed FWS to "exclude any area from critical habitat" if "the benefits of such exclusion outweigh the benefits" of inclusion. *Id.* § 1533(b)(2). The unmistakable import is that Congress did not intend habitat protection—even *critical* habitat protection—to be universally and unilaterally imposed by FWS, without regard to other considerations.⁵⁵ These provisions cannot be squared with

⁵⁴ 16 U.S.C. §§ 1532(5) (A), 1533(a) (3). "Critical habitat" was defined to mean the "specific areas . . . which may require special management considerations or protection." *Id.* § 1532(5) (A). This suggests that habitat outside critical habitat boundaries does not warrant "special protection" under the ESA.

⁵⁵ See 124 Cong. Rec. 38,156 (Oct. 14, 1978) (remarks of Rep. Buchanan); 124 Cong. Rec. 38,666 (Oct. 14, 1978) (remarks of Rep. Murphy that the provision authorizing FWS "to alter the critical habitat designation based on this economic evaluation" is "the most significant provision in the entire bill"); S. Rep. No. 418, 97th Cong., 2d Sess. 11-12 (1982).

the “harm” regulation, making it apparent that the 1978 and 1982 Amendments did not ratify that regulation.⁵⁶

C. *TVA v. Hill* Did Not Decide the Meaning of “Take” or Endorse the Agency’s View

Petitioners rely throughout on *TVA v. Hill*, 437 U.S. 153 (1978). Although they invoke (at 6, 30) the Court’s characterization of the “harm” regulation, *see* 437 U.S. at 184-85 n.30, the *TVA* Court merely assumed the validity of that regulation. Unlike this case, no party in *TVA* had “suggest[ed] that the Secretary exceeded his authority or abused his discretion in issuing the regulations.”⁵⁷

Petitioners (at 17, 30) also highlight the *TVA* statement that the ESA was intended to “reverse the trend

⁵⁶ The “harm” regulation undermines the effectiveness of these provisions. There is little incentive for FWS to designate *critical* habitat by rulemaking if it can effectively protect *all* habitat against modification by simply applying its inflated version of ESA § 9. As a result, the ESA § 7(a)(2) duty of federal agencies to protect critical habitat loses its force, and is effectively shifted to the private sector. *See* Pet. App. 7a. Moreover, two important benefits that Congress provided private landowners are lost: (1) the right to participate (through the rulemaking process) in the designation of protected habitat, and (2) the right to have the economic impact of the designation considered.

⁵⁷ 437 U.S. at 172. No ESA § 9 “take” issue was before the Court. The lower courts had found violations of ESA § 7. *See Hill v. TVA*, 419 F. Supp. 753, 755 and n.1 (E.D. Tenn. 1976), *aff’d in part*, 549 F.2d 1064, 1069-70 and notes 13 and 14 (6th Cir. 1977), *aff’d*, 437 U.S. 153 (1978). This Court observed that it was not reviewing the existence of those violations, but only whether injunctive relief should issue and whether an implied repeal had occurred. *See* 437 U.S. at 156, 171-72; *Amoco Prod. Co. v. Village of Gambell*, 480 U.S. 531, 543 n.9 (1987) (ESA § 7 violations were “conceded” in *TVA v. Hill*). *TVA* is not dispositive as to the “harm” regulation, because it is “contrary to all traditions of our jurisprudence to consider the law on [a] point conclusively resolved by broad language in cases where the issue [here, the legality of the “harm” regulation] was not presented.” *R.A.V. v. City of St. Paul*, — U.S. —, 112 S.Ct. 2538, 2545 n.5 (1992).

towards species extinction, whatever the cost." 437 U.S. at 184. But that statement does not mean that courts must adopt all interpretations that favor listed species.⁵⁸ It "frustrates rather than effectuates legislative intent simplistically to assume that *whatever* furthers the statute's primary objective must be the law." *Rodriguez v. United States*, 480 U.S. 522, 526 (1987).

The court below, as it should have, looked to see how Congress chose to "reverse the trend towards species extinction." It determined that Congress addressed the problem of habitat destruction by imposing duties on the federal government, and addressed the separate problem of predation by making it unlawful for anyone to "take" listed species. Under that scheme, it held the "harm" regulation invalid.

D. Petitioners' Policy Arguments Are Unavailing

Petitioners emphasize Congress' recognition that habitat modification has significant effects on species. They argue, in essence, that the purpose of the Act would be better served if ESA § 9 were construed to reach habitat modification. Such appeals to "policy" are unavailing to override "the text and structure of the Act." *Central Bank*, 114 S.Ct. at 1448, 1453-54.

In any event, the ESA's habitat protection purpose is in fact carefully addressed in the Act. ESA §§ 2(c), 4, 5 and 7 further the habitat conservation purpose through a combination of different federal mechanisms: (1) the

⁵⁸ See *National Wildlife Fed'n v. Burlington Northern R.R.*, 23 F.3d 1508, 1512 (9th Cir. 1994); *Platte River Whooping Crane Critical Habitat Maintenance Trust v. FERC*, 962 F.2d 27, 34, *reh'g denied*, 972 F.2d 1362 (D.C. Cir. 1992). Even federal agencies do not have an absolute duty to avoid jeopardizing the continued existence of listed species. See 16 U.S.C. § 1536(e)-(j). And the extent of designated critical habitat can be reduced based on "economic" considerations "and other relevant factors." *Id.* § 1533(b)(2).

federal duty to conserve by designating critical habitat under ESA § 4; (2) the federal duty under ESA § 7 to conserve and to insure that federally-authorized actions will not adversely modify critical habitat; and (3) the federal duty under ESA § 5 to conserve needed habitat on non-federal lands by acquiring land interests.⁵⁹

Finally, Petitioners (at 21) ask rhetorically why a Congress which recognized that habitat modification was the greatest threat to species would impose habitat protection obligations on federal agencies, but draw the line at imposing habitat preservation duties on private citizens.⁶⁰ The question nearly answers itself. As House floor manager Sullivan made clear, Congress wished to protect private property rights and to avoid federal interference with private land uses. *See* pages 24, 33, *supra*.

⁵⁹ *See* pages 22-24, *supra*. These mechanisms, properly exercised, can be very effective. Nearly one-third of the Nation's land is owned by the federal government. Habitat designated as critical on non-federal lands is protected under ESA § 7(a)(2) to the extent that non-federal actions require federal permits or funding. This extension of the federal power is sufficient to reach the many major private land projects that require some form of federal authorization. Finally, ESA § 5 provides a sure mechanism for protecting habitat—if the federal government makes the policy decision to appropriate the funds necessary to implement it. *See* note 31, *supra*.

⁶⁰ Petitioners criticize (at 49-50) the decision below because it eliminates incentives to prepare conservation plans and receive incidental take permits. Private landowners should not, however, be forced to buy their way out of "take" liability that does not exist. Moreover, the high cost and long delays that characterize the permit process make that process impractical for most private landowners. *See* Thornton, *The Search for a Conservation Planning Paradigm: Section 10 of the ESA*, 8 Nat. Resources & Env't 21, 22-23 (Summer 1993); Ruhl, 44 Sw. L.J. 15 1408-23. As a result, only 30 permits have been approved in the past 10 years. Pet. Br. at 50. For a readable case study of the problems associated with fashioning a conservation plan under ESA § 10, *see* C. Mann and M. Plummer, *Noah's Choice—The Future of Endangered Species* 176-211, 216-28 (Knopf 1995).

Although the broad prohibition Petitioners advocate would arguably help preserve endangered species, "[s]tatutes are seldom crafted to pursue a single goal, and compromises necessary to their enactment may require adopting means other than those that would most effectively pursue the main goal." *Landgraf*, 114 S.Ct. at 1508.

CONCLUSION

The judgment of the court of appeals should be affirmed.

Respectfully submitted,

Of Counsel:

WILLIAM R. MURRAY
AMERICAN FOREST &
PAPER ASSOCIATION
1111 19th Street, N.W.
Suite 800
Washington, D.C. 20036

JOHN A. MACLEOD *
STEVEN P. QUARLES
CLIFTON S. ELGARTEN
THOMAS R. LUNDQUIST
CROWELL & MORING
1001 Pennsylvania Avenue, N.W.
Washington, D.C. 20004-2595
(202) 624-2500

Attorneys for Respondents

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** Counsel of Record*

